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Bhimrao Ramji Ambedkar



Devanesan Nesiah

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Like [Gandhi](#), [Ambedkar](#) was truly a Mahatma and a great visionary. As the Chair of the Drafting Committee of the Indian Constitution, Ambedkar was primarily responsible for gifting to India a great constitution singularly suited to a large, uniquely diverse country. No one else could have done it. He was the right man at the right place at the right time. It is to the credit of the leaders of the Indian National Congress, particularly Gandhi and Nehru, that despite decades of bitter conflicts with Ambedkar, he was entrusted with that daunting task. It is to Ambedkar's credit that he not only accepted that responsibility but produced a gem that has not only survived the many ravages of political changes that rocked India since the mid 20th century, but has held India together and gained lustre in the process despite wide spread predictions to the contrary.

Apart from drafting the constitutions, Ambedkar was the first Minister of Law and Justice of Independent India. The distinguished [sociologist Louis Dumont](#) has categorised societies into Homo Hierarchicus (based on belief in hierarchy) and Homo Equalis (based on belief in equality), and identified India as an exemplar of Homo Hierarchicus. This categorisation has been widely disputed on the grounds that all societies tend to be hierarchical irrespective of the professed ideology. However, India's caste system is unique and, perhaps justifies Dumont's categorisation. In the words of Ambedkar, "Untouchability is more than a religious system. It is also an economic system, which is worse than slavery... As an economic system it permits exploitation without obligation"

Ambedkar was born to a Mahar family of Dalits (oppressed people) then widely referred as to Durjans (meaning evil people). Gandhi introduced the term Harijan (God's people) to describe Dalits; that was also the title of his journal which he published for many years. Ambedkar found the term to be patronising and preferred the term Dalit.

I will avoid repeating of what Dr. Upul Wijayawardhana has written in his [excellent article in The Island](#) on Saturday 10th December, but would urge readers to study that very informative piece. When Ambedkar returned to India with many prestigious Doctorates and Masters degrees from the Universities of Columbia and London, predictably, he remained an untouchable and was widely treated as one. On one occasion he was requested to garland a statue of Shivaji, an Indian hero who had a long history of leading revolt against Moghuls and other invaders. The next day there were Brahmins at the side of the statue to purify it of pollution acquired by the touch of an untouchable.

Among his many books there is one titled, "[What Congress and Gandhi has done to the Untouchables](#)" (Lahore; Classics, 1977). He prefaces a quotation from the [Thucydides](#), "It may be in your interest to be our masters, but how can it be in ours to be your slaves?" Superficially it may appear that knowledge of the national leaders of the past, and shared mythology, history and tradition may help to unite the different categories of people of India; In fact these very factors serve to divide. Many Indian heroes have exhibited deep caste prejudices. Many Hindu traditions and rituals are caste based. While these may serve to bind and inspire Caste Hindus, they may alienate Dalits and, in some cases, other minorities such as Muslims. Such a contradiction is not peculiar to India. In the USA, celebrating Thanksgiving and Independence may inspire and unite Whites but not Native Americans or Blacks. As expressed by the great Black leader [Frederick Douglass](#), "This 4th of July is yours not mine... The sunlight that brought light and healing to you had brought stripes and death to me" [Quoted in Higginbotham Jr et al in Race in American Law, in Bernard Schwartz (ed) American Law- the 4th century, New York University School of Law]

While Gandhi and the Caste Hindu leaders were jailed for undermining Britain's war efforts through Civil Disobedience Campaigns, Ambedkar mobilised Dalits for the war effort. He was determined that before the British left, there should be tangible progress in the struggle of the Dalits. He had little hopes of achieving any such progress after the British left. A potentially fateful dispute was related to caste quotas into state sector administrative and educational institutions and into elected political bodies. While such quotas have long been accepted in India, the fresh issue raised by Ambedkar was that the electorates should also be segregated. Traditionally the electorates were purely territorial and reserved for caste, untouchable and tribal candidates in rotation, But the electorates were integrated and hardly any of them had untouchable majorities. In consequence, untouchables seating election needed to appear to be moderates. They also needed to be survive in their campaigning; any show of defiance would lose votes Ambedkar wanted segregated electorates in which only untouchables could vote for untouchable candidates, thus enabling untouchable candidates to campaign aggressively on very radical manifestos which they cannot afford to do if the majority in electorates were High Caste. Gandhi thought this could be divisive. Since the British wanted this dispute to be settled before any progress towards Independence resumed, Gandhi began an indefinite fast to death. Nervous that the death of Gandhi could provoke a spate of caste atrocities, Ambedkar was persuaded to abandon his demand for segregated electorates in exchange for larger reservations for untouchables and tribals. Gandhi's fast was called off, and progress towards independence was resumed.

There were other issues of dispute between Gandhi and Ambedkar such as Gandhi's concept of devolving down to the Village Panchayats. On this issue Nehru and many other caste Hindu leaders sided with Ambedkar who voiced his position bluntly: "What is a village, but a sink of localism, a den of ignorance, narrow mindedness and communalism". Gandhi's move to vitalise Panchayats was voted out, and the outcome was a constitution that was in-line with Ambedkar's and Nehru's shared ideologies of a social modern democratic state with elaborate provisions for human rights including reverse discrimination for disadvantaged groups, particularly Dalits and tribals. As Jennings has observed (some characteristics of the Indian constitution, Madras, Oxford University Press, 1953), "The ghosts of Sydney and Beatrice Webb stalk through the pages of the text of the directive principles of the Indian constitution."

Despite extensive and detailed constitutional safe guards, despairing of meaningful reform, Ambedkar resorted to tactics similar to those pioneered by black Muslims in the USA. He led half a million Dalits into Buddhism and another half a million followed soon after his death. The political nature of this initiative is clear from the fact that Ambedkar first considered conversion to Islam or Christianity as alternatives before settling on Buddhism. The reason why Christianity was rejected may be that several Christian churches and even foreign Christian Missionaries had taken opportunist positions on caste, in India as in Sri Lanka. That the church lost gaining a million of converts from Hindu Dalits is a major loss to the church, but a greater loss is their ideological compromise with caste discrimination and oppression. In this matter, Buddhists in Sri Lanka have gone further and established their own caste system, deeply compromising the teachings of the Buddha. The position of Islam in gender may be unacceptable, but it is surely better on caste than those of Hindus, Buddhists and Christians.

Finally, Ambedkar has borrowed freely from the French constitution, particularly in the preamble emphasizing Liberty, Equality and Fraternity and even more from the US constitution especially the 14th Amendment relating to due process to equal protection, but his constitution is in several ways superior to both the French and the US

constitutions. Truly, he was a visionary Mahatma.

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